

CHAPTER XVIII.

The Master's Office.

The decree.

The cause having been heard, the Registrar enters in his book a short minute of the decision delivered. The Solicitor, who desires to take out the decree, makes an appointment with the Registrar for settling the "minutes," or a short draft of the decree, and gives a notice to the solicitors of all the other parties, of the time appointed. Any objection raised by either party to the form of the decree is disposed of by the Registrar, who, if he thinks fit, refers to the Court before deciding. In difficult cases the Judges frequently draw up the minutes themselves. Another appointment is made to "pass" the decree, on which occasion the Registrar has it drawn up in full, embracing short minutes of the evidence which has been read at the hearing. Each party sees that the decree is satisfactorily framed in accordance with the minutes which have already been settled, and it is then entered, and office copies delivered by the Registrar to the Solicitors who bespeak them.

The following English Order gives some idea of the form of the decree :—

21st Dec.,
1833.
Order 27.
Decrees and
Orders (except
for special In-
junctions) not
to contain re-
citals.

That for the purpose of avoiding, as much as may be, expenses and delay in the drawing of the Decrees and Orders of this Court, it is hereby directed that (except in Orders for special injunctions, in which the usual recitals

shall be inserted, nor any original decree be stated to be stated to the Master's Office; and the petition that the same be made consistent with the original decree, which the original decree of this Court drawn pursuant to the original decree. And it is hereby directed that in all cases

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This cause was debated before the Court on both sides, and upon debate the usual form of the decree was drawn up, and what was the Lordship directed

The Form

This cause was heard and decreed, and the decree was made except the usual form of the decree the day of the month of the year, and was affirmed by the Court, and thereupon the decree was made (only). And the matter of the decree was reserved) in the matter of the decree upon opening